BC614258 BC614258

County: los-angeles

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Case Number: BC614258 Hearing Date: August 28, 2026 Dept: 224

TENTATIVE RULING

The Motion to Dismiss is GRANTED. The Court hereby orders this action DISMISSED.

ANALYSIS

Introduction

On March 18, 2016, Plaintiff Denise Baldwin filed her verified Complaint in this action against Champion Mortgage Company and fictitiously named defendants, arising out of a dispute over real property on 84th Place in Los Angeles. The Complaint alleged nine causes of action, including quiet title and violation of the California Homeowner Bill of Rights.

On or about June 7, 2018, after Champion did not respond, Plaintiff obtained a default judgment against it in the amount of $500,000.

On September 23, 2019, the Court granted Nationstar's motion to vacate the default judgment, which was void because Nationstar had never been served with the summons and complaint.

On July 25, 2022, the Court sustained Nationstar's demurrer to the Second Amended Complaint without leave to amend, on the ground that Plaintiff had not established standing as successor in interest to the decedent.

On January 17, 2024, the Court denied Plaintiff's motion for relief under Code of Civil Procedure section 473(b) and, on the same date, granted a motion for judgment on the pleadings brought by Champion and the defendants substituted in for Doe defendants — Nationstar Mortgage Holdings, Inc.; Mr. Cooper; and Mr. Cooper Group, Inc. — and dismissed the action. Judgment was entered in Defendants' favor.

On January 30, 2024, Plaintiff filed a Notice of Appeal. The Court of Appeal dismissed the appeal on May 22, 2024 for failure to comply with the Rules of Court, then, on Plaintiff's motion, vacated that dismissal and reinstated the appeal on June 6, 2024.

On October 23, 2025, the Court of Appeal (Second Appellate District, Division Five) reversed the judgments and remanded, holding that Plaintiff had adequately alleged standing as the administrator of the decedent's estate.

On January 7, 2026, the remittitur issued.

On May 18, 2026, pursuant to the Court's order, Plaintiff filed her Brief re Computation of the Five-Year Rule.

On June 1, 2026, Defendants Nationstar Mortgage Holdings, Inc.; Nationstar Mortgage LLC d/b/a Champion Mortgage Company; Mr. Cooper; and Mr. Cooper

Group, Inc. filed the instant Motion to Dismiss for Failure to Bring Case to Trial under Code of Civil Procedure sections 583.310 and 583.360.

On July 21, 2026, Plaintiff filed an opposition.

On July 29, 2026, Defendants filed a reply.

On August 17, 2026, Defendants filed supplemental briefing in support of the motion, as requested by the Court during the August 5, 2026 hearing on the motion.

Plaintiff failed to file any supplemental authority, or argument.

Requests for Judicial Notice

Defendants request the Court to take judicial notice of (1) The trial Court’s docket for case no. BC614258, Denise Baldwin v. Champion Mortgage Company, et al., as filed on March 18, 2016.; (2) The appellate Court’s docket for case no. B336691, Denise Baldwin v. Champion Mortgage Company, et al.; and (3) Exhibit B, attached to the previously filed Declaration of Dalar Abolian In Support of Nationstar Mortgage LLC’s Notice of Motion and Motion to Vacate Default Judgment, filed with this Court in this case, case no. BC614258, on July 26, 2019.

The request is granted.

Motion to Dismiss – Five Year Rule

Defendant moves to dismiss the action on the grounds that Plaintiff has failed to bring the action to trial within five years after its commencement, as required by California Code of Civil Procedure Section 583.310.

Legal Standard

Under Code of Civil Procedure Section 583.310, the time to bring a civil action to time is “within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) Commencement of an action is “firmly established as the filing of the initial complaint.” (Brumley v. FDCC California, Inc. (2007) 156 Cal.App.4th 312, 318.) Further, “an action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article.” (Code Civ. Proc., § 583.360(a).) Code of Civil Procedure Section 583.360 also provides that “[t]he requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” (Code Civ. Proc., § 583.360(b).)

Discussion

Here, the action was commenced on March 18, 2016. Because this action was filed on or before April 6, 2020, the six-month extension under Emergency Rule 10(a) applies, yielding a presumptive deadline of September 18, 2021. (Cal. Rules of Court, appen. I, Emergency Rule 10(a).) If an action is not brought to trial within the time prescribed by article 3, dismissal is mandatory and "not subject to extension, excuse, or exception except as expressly provided by statute." (§ 583.360, subds. (a), (b).) Defendants now move to dismiss the action on that basis.

Under section 583.340, the five-year period excludes time during which the court's jurisdiction to try the action was suspended, prosecution or trial was stayed, or “[b]ringing the action to trial, for any other reason, was impossible, impracticable, or futile.” (Code Civ. Proc., § 583.340(c).) Further, the trial court must determine impossibility, impracticability, or futility “in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves.” (Bruns v. E-Commerce Exchange, Inc. (2011) 51 Cal.4th 717, 730.) In particular, the trial court must consider “whether the plaintiff exercised reasonable diligence in prosecuting his or her case.” (Id.) The plaintiff bears the burden of proof to demonstrate that a Section 583.340 exception is applicable to the proceedings. (See Perez v. Grajales (2008) 169 Cal.App.4th 580, 590.)

The Claimed Exclusions

Plaintiff identifies eight periods, totaling 3,097 days, that she contends must be excluded from the computation under section 583.340. She bears the burden of proving that the circumstances warrant application of an exception (Bruns, supra, 51 Cal.4th at p. 731; Perez, supra, 169 Cal.App.4th at p. 590), and she has not carried it as to any of them.

The Court has considered each period in light of all the circumstances of this case, including the acts and conduct of the parties and the nature of the proceedings themselves, and finds that none qualifies. The periods Plaintiff attributes to the vacatur of the default judgment, to the wait for Defendants' first appearance, and to the pendency of her section 473(b) motion are traceable to her own failure to serve Defendants within the time allowed by section 583.210 and to her counsel's acknowledged procedural defaults. Delay a plaintiff generates herself is not delay "over which plaintiff had no control." (Gaines, supra, 62 Cal.4th at p. 1102, italics in original; Dale v. ITT Life Ins. Corp. (1989) 207 Cal.App.3d 495, 502.) The periods Plaintiff attributes to continued demurrer hearings, rescheduled case management conferences, pending discovery motions, and her peremptory challenge are ordinary incidents of the proceedings and normal waiting for a place on the court's calendar, which our Supreme Court has held are "not within the contemplation of these exceptions." (Bruns, supra, 51 Cal.4th at p. 731.)

Pandemic-related delay in this category of case was addressed by the calibrated six-month extension of Emergency Rule 10(a), which Plaintiff has already received. Even were the Court to credit in full the 225 days Plaintiff attributes to the pandemic, the deadline would extend only to approximately September 18, 2021 and the action still was not brought to trial by that date.

More than 1,300 of the days Plaintiff claims — including the entire appellate period, which the Court would otherwise exclude — fall after September 18, 2021, and an exclusion operates to extend a period still running. It cannot restore one that has already expired. Underlying all of it is the critical factor, whether Plaintiff exercised reasonable diligence in prosecuting her case at all stages of the proceedings (Bruns, supra, 51 Cal.4th at p. 730.) In the more than ten years this action has been pending, it has never progressed beyond the pleading stage, no trial date has ever been set, Plaintiff never requested a trial setting conference or moved to specially set the matter for trial, and Plaintiff's counsel has been the subject of repeated orders to show cause regarding sanctions for failure to appear and failure to file required statements and reports.

On this record, no period is excluded under section 583.340 that would extend the deadline beyond September 18, 2021.

Even including the periods of default, the math does not add sufficient time to extend the bring the case to trial by the deadline, but the Court will hear argument on this in the event the Court's calculations are incorrect.

Supplemental Briefing: Section 583.320(a)(3)

The Court has also considered Defendants' supplemental briefing on the issue of whether CCP § 583.320(a)(3) affords Plaintiff three years from the January 7, 2026 remittitur, and concludes that it does not.

Code of Civil Procedure section 583.320, subdivision (a) provides, "If a new trial is granted in the action the action shall again be brought to trial within the following times: [¶¶] (3) If on appeal an order granting a new trial is affirmed or a judgment is reversed and the action remanded for a new trial, within three years after the remittitur is filed by the clerk of the trial court."

Assuming without deciding that the sustaining of a demurrer without leave to amend and the granting of a motion for judgment on the pleadings, each followed by a judgment of dismissal, constitute a "trial" for purposes of this article – and the Court is satisfied that they do – it does not follow that section 583.320(a)(3) supplies Plaintiff a new three-year period here. (see Crown Coach Corp. v. Superior Court (1972) 8 Cal.3d 540, 544 ["the determination of the issues of law raised by the demurrer constitutes a trial within the meaning of section 583"]; McDonough Power Equipment Co. v. Superior Court (1972) 8 Cal.3d 527, 532.)

An action not brought to trial within the time prescribed "shall be dismissed," and that requirement is "mandatory and . . . not subject to extension, excuse, or exception except as expressly provided by statute." (§ 583.360, subds. (a), (b).) Where the five-year period has fully elapsed before any trial occurs, the defendant's entitlement to dismissal has already vested, and a judgment subsequently entered in that action – and its reversal on appeal – cannot supply a fresh three-year period. Although no published decision squarely addresses the question, the reasoning of Fannin Corp. v. Superior Court (1974) 36 Cal.App.3d 745, 754, is persuasive. A contrary rule "would result in giving a non-diligent litigant an automatic three-year extension," obtainable by the simple expedient of provoking a dispositive ruling and securing its reversal. (Id.) The Court declines to construe the mandatory dismissal statutes so as to reward the very delay they were enacted to prevent.

Applied here, the five-year period, as extended by Emergency Rule 10(a), expired on September 18, 2021. For the reasons stated above, none of Plaintiff's claimed exclusions applies. (Gaines v. Fidelity National Title Ins. Co. (2016) 62 Cal.4th 1081, 1102.) The earliest event that could qualify as a trial occurred on July 25, 2022, more than ten months after the period expired, and the action was not disposed of as to the remaining Defendants until January 17, 2024. This action was thus already subject to mandatory dismissal before it was ever brought to trial. Section 583.350 does not alter the result, as no time remained on the five-year period when the appellate tolling ended.

Accordingly, section 583.320(a)(3) affords Plaintiff no period running from the January 7, 2026 remittitur, and dismissal under sections 583.310 and 583.360 is mandatory.

Conclusion

The Motion to Dismiss is tentatively GRANTED. The Court hereby orders this action DISMISSED.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.